

2019 C L C 1141

[Lahore (Bahawalpur Bench)]

Before Jawad Hassan, J

MUHAMMAD ASLAM----Petitioner

Versus

MEMBER (COLONIES) BOARD OF REVENUE PUNJAB LAHORE and others----
Respondents

Civil Revision No.336 of 2010, decided on 26th March, 2019.

(a) Punjab Land Revenue Act (XVII of 1967)---

---S. 164, proviso---Allotment of land in favour of petitioner was cancelled by appellate authority in revenue hierarchy---Plea raised by petitioner was that he was not afforded opportunity of hearing---Maxim: audi alteram partem---Applicability---Validity---Petitioner was not afforded opportunity of hearing despite the fact that record was made available to Board of Revenue and it could have kept in mind that someone may be affected by such order--- Courts below had dilated upon specific findings on issue which was clear violation of doctrine of Maxim: audi alteram partem--- High Court set aside order passed by Board of Revenue as petitioner was condemned unheard and same was declared void ab initio having no value in eyes of law---Judgments and decrees passed by courts below were set aside and case was remanded to Board of Revenue for decision afresh after affording proper opportunity of hearing to all concerned including the petitioner---Revision was allowed accordingly.

Messrs Blue Star Spinning Mills Ltd. v. Collector of Sales Tax and others 2013 SCMR 587; Ali Muhammad v. Allah Ditta and others 1985 CLC 2817; Moulana Atta ur Rehman v. Al Hajj Sardar Umar Farooq and others PLD 2008 SC 663 and Chief Commissioner, Karachi and another v. Mrs. Dina Sohrab Katrak PLD 1959 SC (Pak.) 45 ref.

(b) Constitution of Pakistan---

---Art. 10-A---Due process of law and right of fair trial---Maxim: audi alteram partem---Connotation and applicability---Scope---Natural justice, principles of---Scope---Every person to get a chance of being heard---Maxim: Audi alteram partem means 'hear the other side' or 'no man should be condemned unheard' or 'both sides must be heard before passing any order'---Maxim itself says 'no person should be condemned unheard'---No case or judgment can be decided without listening to point of another party---Natural justice means

that justice should be given to both parties in a just, fair and reasonable manner---Both parties are equal before the Court and have an equal opportunity to represent them--- Natural justice is concept of common law which implies fairness, reasonableness, equality and equity---Principles of natural justice are grounds of Art. 10-A of the Constitution that every person should be treated equally--- Law and procedure must be of a fair, just and reasonable kind--- Principles of natural justice come into force when prejudice is caused to any administrative action---Principle of audi alteram partem is basic concept of principle of natural justice and states that "no one should be condemned unheard"---Maxim ensures a fair hearing and fair justice to both the parties and both parties have right to speak---No decision can be declared without hearing both parties---Object of Maxim: audi alteram partem is to give an opportunity to both parties to defend themselves--- No proposition can be more clearly established than that a man cannot incur loss of liberty or property for an offence by a judicial proceeding until he has had a fair opportunity of answering case against him--- No party is to suffer in person or in purse without an opportunity of being heard---Maxim: audi alteram partem is first principle of civilized jurisprudence and is accepted by law of men--- Generally, said maxim includes two elements (a) notice; and (b) hearing---Before any action is taken, effected party must be given a notice to show cause against proposed action and seek his explanation and is a sine qua non of right of fair hearing---Any order passed without giving notice is against principles of natural justice and is void ab initio---Second ingredient of Maxim: audi alteram partem (hear the other side) is rule of hearing---If order is passed by authority without providing reasonable opportunity of being heard to person effected by it adversely, such order is invalid and must be set aside--- Reasonable opportunity of hearing which is also well-known as 'fair hearing' is an important ingredient of audi alteram partem rule--- Such condition may be complied by authority by providing written or oral hearing which is discretion of authority unless statute under which action is being taken by authority provides otherwise.

Bank of Punjab v. Accountability Courts Nos.1 and 2 others PLD 2014 Lah. 92 rel.

A.R. Aurangzeb for Petitioner.

Asif Mahmood Pirzada for Respondents.

Jam Muhammad Afzal Gasoor, Assistant Advocate-General.

Date of hearing: 26th March, 2019.

JUDGMENT

JAWAD HASSAN, J.----Through this Civil Revision Petition, filed under section 115 of the Code of Civil Procedure, 1908 (C.P.C.), the Petitioner has challenged the validity of impugned judgments and decrees dated 04.10.2005 and 12.01.2010 passed by the Civil Judge, Bahawalpur and Additional District Judge Bahawalpur. He also prayed for setting aside the order of the Member (Judicial-I) Board of Revenue, Punjab Lahore Camp Bahawalpur (the "Member BOR") dated 24.03.1997.

2. The facts succinctly revealed from the petition are that the Petitioner was allotted agricultural land on Temporary Cultivation Scheme measuring 100 Kanals situated in Goth Mehroo Tehsil and District, Bahawalpur vide order dated 11-4-1975, passed by the Assistant Commissioner/Collector Bahawalpur which was confirmed vide order dated 08.01.1978 passed by the Deputy Commissioner Bahawalpur and the Petitioner deposited all the dues concerning to the same land. The tenancy period was extended from time to time. The Petitioner submitted application in the year 1995 for the grant of proprietary rights on the prescribed form in time according to directions/instructions of the Board of Revenue. In the meanwhile, the said land was acquired for "Jinnah Abadi" and the revenue staff reported the matter accordingly. The Petitioner being aggrieved made request for allotment of alternate land in Chak No.112/DNB Tehsil Yazman District Bahawalpur by describing that square No.46 Killa Nos.14-25 and 13 half total 100 Kanals of land (the "Disputed Land") but the Assistant Commissioner Bahawalpur showed his inability being out of Tehsil Bahawalpur on 09.04.1992. Against which the Petitioner filed an Appeal before the Additional Commissioner (Revenue) Bahawalpur with a prayer to allot the land which was State land as per report of revenue staff which was allowed and the Petitioner in the year 1993 got possession of the Disputed Land which was barren, vacant and State land (Baqaya Sarkar); paid all the outstanding dues in terms of lease money and made it cultivable after spending huge amount. When the Petitioner applied for ownership rights after fulfillment of all the formalities, the Respondent No.4 claimed that actually he was entitled to the Disputed Land. The respondent No.4 moved to the Collector for the allotment to which he refused. Feeling aggrieved thereby the Respondent No.4 filed an Appeal which too was dismissed vide order dated 10.11.1986 by the Additional Commissioner, Bahawalpur. The Respondent No.4 then filed revision petition in the year 1995 before the Member BOR which was, accepted.

3. Feeling aggrieved by the order of the Member (Judicial-I) Board of Revenue, the Petitioner filed a civil suit which was contested by all the Respondents and ultimately the same was dismissed and Appeal there-against was also met to the same fate vide the impugned judgments and decrees.

4. During the pendency of the instant petition, the name of the Respondent No.4 has been rectified from Muhammad Ramzan to Muhammad Shabbir through C.M. No.1350/2018 filed by the Petitioner.

5. Learned counsel for the Petitioner inter alia submitted that the impugned judgments and decrees are against the law and facts; that both the Courts below have not taken into consideration the facts and law in its true perspective; that the Appeal as well as Revision of the Respondent No.4 before the revenue hierarchy were badly time barred but this aspect of the matter has never been taken into consideration by the Member BOR as well as both the Courts below; that the Member BOR had passed the order dated 24.03.1997 in favour of the Respondent No.4 without affording any opportunity of hearing to the Petitioner, as such there is sheer violation of principle of natural justice and that too this ground has not been discussed by both the Courts' below as well despite agitation before them; that valuable rights had been accrued in favour of the petitioner in shape of the allotment and possession of the Disputed Land, therefore, he was necessary party but he was condemned unheard, as such his fundamental rights are being infringed; that the Disputed Land was allotted to the

Petitioner after fulfillment of all the requisite formalities and accordingly possession was delivered to him and that too he made the Disputed Land cultivable by spending huge amount and he is still in possession whereas the Respondent No.4 has failed to show that legal formalities have been fulfilled towards his claim, therefore, he cannot be deprived from his valuable rights. To fortify his contentions, the learned counsel for the Petitioner has placed reliance on the case titled Messrs Blue Star Spinning Mills Ltd. v. Collector of Sales Tax and others (2013 SCMR 587), Ali Muhammad v. Allah Ditta and others (1985 CLC 2817), Bank of Punjab v. Accountability Courts Nos.1 and 2 others (PLD 2014 Lahore 92) Moulana Atta ur Rehman v. Al Hajj Sardar Umar Farooq and others (PLD 2008 Supreme Court 663) and Chief Commissioner, Karachi and another v. Mrs. Dina Sohrab Katrak (PLD 1959 Supreme Court (Pak.) 45).

6. On the contrary, learned Law Officer as well as learned counsel appearing on behalf of the Respondent No.4 vehemently controverted the arguments advanced by the learned counsel for the Petitioner and prayed for dismissal of the petition on the grounds that the impugned judgments and decrees have rightly been passed; that the Respondent No.4 was already allotted the Disputed Land, therefore, any subsequent allotment in favour of the Petitioner has no value in the eye of law.

7. I have heard the arguments of both the sides and perused the record.

8. The basic grievance of the Petitioner is that the Member BOR has passed the order dated 24.03.1997 in favour of the Respondent No.4 without affording any opportunity of hearing to the Petitioner and has been condemned unheard, as such there is a clear violation of principle of natural justice and that too this aspect of the matter has not been discussed and resolved by the Courts below who passed the impugned judgments and decrees. Proviso to Section 164 of the West Pakistan Land Revenue Act, 1967 (the "Act") clearly reveals as under:

"Provided that no order shall be passed under this section reversing or modifying any proceedings or order of a subordinate Revenue Officer affecting any person without giving such person an opportunity of being heard."

9. From the above it is very much clear that the affecting person should not be condemned unheard and should be allowed opportunity of hearing in case any order is passed against him/her. Admittedly, the allotment of the Disputed Land was made in favour of the Petitioner and undoubtedly that fact was incorporated in the revenue record prior to passing of the order dated 24.03.1997 by the Member BOR. The minute examination of the order dated 24.03.1997 by the Member BOR vividly depicts that only the Respondent No.4 was heard and Abdul Ghani, Colony Clerk was also present with record. The Petitioner has not been afforded opportunity of hearing despite the fact that the record was made available to the Member BOR and he could have kept in mind that someone may be affected by his order. But he totally ignored the same and passed 'the order unilaterally. The record also does not show that the Courts' below in the impugned judgments have dilated upon their specific findings on this issue which is clear violation of the doctrine of audi alteram partem.

10. The Latin maxim, 'Audi Alteram Partem' is the principle of natural justice where

every person gets a chance of being heard. Audi alteram partem means 'hear the other side', or 'no man should be condemned unheard' or 'both the sides must be heard before passing any order'. Meaning thereby the maxim itself says no person shall be condemned unheard. Hence, no case or judgment can be decided without listening to the point of another party. Natural justice means that justice should be given to both the parties in a just, fair and reasonable manner. Before the court, both the parties are equal and have an equal opportunity to represent them. Natural justice is the concept of common law which implies fairness, reasonableness, equality and equity. In our country, the principles of natural justice are the grounds of Article 10-A of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution") which Article enshrines that every person should be treated equally. The law and procedure must be of a fair, just and reasonable kind. The principle of natural justice comes into force when prejudice is caused to anyone in any administrative action. The principle of audi alteram partem is the basic concept of the principle of natural justice. This doctrine states the no one shall be condemned unheard. This ensures a fair hearing and fair justice to both the parties. Under this doctrine, both the parties have the right to speak. No decision can be declared without hearing both the parties. The aim of this principle is to give an opportunity to both the parties to defend themselves. No proposition can be more clearly established than that a man cannot incur the loss of liberty or property for an offence by a judicial proceeding until he has had a fair opportunity of answering the case against him. A party is not to suffer in person or in purse without an opportunity of being heard. This is the first principle of civilized jurisprudence and is accepted by laws of men. Generally, this maxim includes two elements: (A) Notice; and (B) Hearing.

(A) Notice:

Before any action is taken, the affected party must be given a notice to show cause against the proposed action and seek his explanation. It is a sine qua non of the right of fair hearing. Any order passed without giving notice is against the principles of natural justice and is void ab initio. Before taking any action, it is the right of the person to know the facts. Without knowing the facts of the case, no one can defend himself. The right to notice means the right of being known. The right to know the facts of the suit or case happens at the start of any hearing. Therefore, notice is a must to start a hearing. A notice must contain the time, place and date of hearing, jurisdiction under which the case is filed, the charges, and proposed action against the person. All these things should be included in a notice to make it proper and adequate. Whenever a statute makes it clear that a notice must be issued to the party and if no compliance or failure to give notice occurs, this makes the act void. Non-issue of the notice or any defective service of the notice do not affect the jurisdiction of the authority but violates the principle of natural justice.

(B) Hearing: - Oral or Personal Hearing- How Far Necessary:

The second ingredient of audi alteram partem (hear the other side) rule is the rule of hearing. If the order is passed by the authority without providing the reasonable opportunity of being heard to the person affected by it adversely will be invalid and must be set aside. The reasonable opportunity of hearing which is also well known as 'fair hearing' is an important ingredient of the audi alteram partem rule. This condition may be complied by the authority

by providing written or oral hearing which is the discretion of the authority, unless the statute under which the action being taken by the authority provides otherwise. It is the duty of the authority who will ensure that the affected party may be given an opportunity of hearing. However, the above rule of fair hearing requires that the affected party should be given an opportunity to meet the case against him effectively.

11. Reliance in this regard can be placed on the Bank of Punjab case supra in which this Court while relying upon the principles enunciated by the Hon'ble Supreme Court of Pakistan, has held as follows:

"Such principle is applicable to judicial as well as non-judicial proceedings and executive acts and it has to be read into every statute subject to certain exceptions. If right of hearing has not been expressly provided in a statute, provisions of the Constitution can be put into service."

12. In view of the above situation, admittedly, as the Petitioner has been condemned unheard by the Member BOR vide its order dated 24.03.1997, therefore, the same is hereby declared void ab initio having no value in the eye of law. Furthermore, the impugned judgments are also silent in this regard, consequently, the impugned order dated 24.03.1997 as well as the impugned judgments and decrees are hereby set aside. The instant petition is hereby allowed. Resultantly, the case is remanded to the Member BOR for its decision afresh after affording proper opportunity of hearing to all the concerned including the Petitioner. Both the parties are directed to appear before the Member BOR on 11.04.2019.

13. It is also pertinent to mention here that along with the ground of being unheard, the Petitioner has also made various other grounds against the order dated 24.03.1997 including time barred Appeal and revision etc., therefore, the Petitioner should better agitate all his pleadings/grounds/objections before the Member BOR in support of his claim who shall decide the same after hearing both the parties in detail and keeping in view the record pertaining to the case in hand.

MH/M-70/L

Case remanded.